



National Insurance Surcharge Act 1976

1976 CHAPTER 85

An Act to impose a surcharge, payable into the Consolidated Fund, on secondary Class 1 contributions under the Social Security Act 1975 and the Social Security (Northern Ireland) Act 1975. [22nd December 1976]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the surcharge hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Every person who pays or is liable to pay a secondary Class 1 contribution under the Social Security Act 1975 in respect of earnings paid in a tax week beginning on or after 6th April 1977 shall be liable to pay with the contribution a surcharge equal to 2 per cent. of the amount of the earnings in respect of which the contribution is paid or payable.

secondary Class 1 contributions.
1975 c. 14.

(2) There shall be paid into the Consolidated Fund of the United Kingdom the sums received by the Secretary of State on account of surcharges under this section; and he shall determine the amount of those sums in accordance with any directions given by the Treasury.

(3) The following provisions, that is to say—

(a) Schedule 1 to the said Act of 1975 (computation, collection and recovery of contributions) and, except in so far as they make provision to the contrary, the regulations for the time being in force under that Schedule; and

(b) sections 144 to 151, 152(1) to (5), 153 and 164 of that Act (enforcement, unpaid contributions, information etc.),

shall apply in relation to any contribution with which a surcharge is payable under this section as if the surcharge were part of the contribution; and subsection (2) above shall apply to any sum recovered under the provisions mentioned in section 152(4) so far as representing any such surcharge.

(4) Section 139(1) of the said Act of 1975 (consultation with National Insurance Advisory Committee) shall not apply to regulations contained in a statutory instrument which states that it contains only provisions in consequence of this Act or of this Act and an order under section 120 or 122 of that Act.

(5) Any provision contained in or having effect under any enactment other than this Act or the Social Security Acts 1975 and applying in relation to a contribution with which a surcharge is payable under this section shall, subject to subsection (6) below, apply in relation to the contribution as if the surcharge were part of the contribution.

(6) The Treasury may by order direct that subsection (5) above shall not apply to any specified provision contained in an enactment passed before this Act; and in the case of any provision contained in a subsequent enactment, or having effect under any enactment, that subsection shall apply subject to any provision to the contrary made by or under that enactment.

(7) The power to make orders under subsection (6) above includes power to vary or revoke a previous order and shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(8) This section shall apply to Northern Ireland with the following modifications—

(a) for the references in subsections (1), (3) and (5) to the Social Security Act 1975 and the Social Security Acts

1975 there shall be substituted references to the Social Security (Northern Ireland) Act 1975 and the Social Security (Northern Ireland) Acts 1975 ;

- (b) for the reference in subsection (2) to the Secretary of State there shall be substituted a reference to the Department of Health and Social Services for Northern Ireland ;
- (c) for the references in subsection (3) to sections 144 to 151, 152(1) to (5), 153, 164 and 152(4) there shall be substituted references to sections 135 to 142, 143(1) to (3), 144, 154 and 143(2) ; and
- (d) any reference to an enactment shall include a reference to a Measure of the Northern Ireland Assembly.

2.—(1) Subject to subsection (2) below, any administrative expenses of the Secretary of State and of any other department of the government of the United Kingdom incurred for the purposes of this Act shall be defrayed out of moneys provided by Parliament.

(2) So much of the sums payable into the Consolidated Fund under section 1 above as the Treasury may determine to be equal to the said expenses may be treated as if they were receipts falling within section 2 of the Public Accounts and Charges Act 1891 c. 24. 1891 and may be directed to be appropriated in aid accordingly.

3.—(1) This Act may be cited as the National Insurance Surcharge Act 1976.

Short title and application to Crown.

(2) This Act binds the Crown.